

Given the inability to articulate the necessity of this discovery when asked, Responding Party will not accommodate this Request. Responding Party remains open to meeting and conferring with Propounding Party.

Boilerplate objections, such as those made by AGC, fail to satisfy the level of specificity required by the discovery statutes and are sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) Indeed it is a misuse of the discovery process to provide, without substantial justification, an unmeritorious objection to discovery or to make an evasive response to discovery. (Code Civ. Proc. § 2023.010(e), (f).) AGC's repeated the identical boilerplate objections to each discovery demand and failed to articulate the basis for any objection. Nor is there any legal basis for AGC to demand that Plaintiff "articulate the necessity" for discovery before AGC will agree to produce such discovery.

Once a motion to compel has been filed, the burden is on the responding party to justify the objections made. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.) In its opposition, AGC focuses its argument primarily on its belief that the requests are overbroad and irrelevant. AGC also argues that it is produced sufficient responses elsewhere and that Plaintiff is essentially seeking unfettered access to AGC's electronic files simply to build his case.

A primary contention in Plaintiff's claims against AGC is that it has not only failed to produce the required Reports, but that it also knew it was incapable of producing those Reports when it entered into the Agreement with Plaintiff. Plaintiff has produced evidence in his motion tending to show that there is a dispute, even among AGC's members, as to what the software/computing programs AGC uses can in fact produce. Plaintiff reasonably argues that forensic review of the computers and electronic storage systems themselves may reasonably produce evidence tending to prove (or disprove) Plaintiff's theories regarding AGC's unwillingness or inability to produce those Reports.

However, the Court is also cognizant of the privacy interests potentially implicated by allowing access to AGC (and potential private individual) computers. Accordingly, the Court orders as follows:

1. AGC is ordered provide code-compliant responses to the demands for inspection, without mere boilerplate objections.
2. Plaintiff is to produce a list of search terms to be used by the forensic examiner and to provide the same to AGC and the Court within fifteen (15) days. Plaintiff is also to draft and circulate a protective order for approval by AGC regarding the limitation on use of data obtained and steps which will be taken to ensure that private personal data is not accessed.
3. The parties shall present a protective order to the Court within thirty (30) days of this Order.

4. Upon approval of the protective order, AGC shall permit inspection of all electronic media used in the regular course of business within fifteen (15) days.

Sanctions

Plaintiff's counsel seeks sanctions in relation to this motion. Pursuant to Code Civ. Proc. section 2030.030 the Court may impose sanctions for the misuse of the discovery process. Here, Defendant's initial responses to the Plaintiff's discovery requests were evasive, lacked specificity, and contained numerous (and identical) boiler plate objections. However, Defendant's opposition indicates that it had a reasonable belief that the requests were overbroad given that they might implicate personal computers. Accordingly, the Court reduces the sanctions sought to \$500.00.